RATIO / CASE READING SHEET

Mwamba v. Zambia

UN Human Rights Committee | CCPR/C/98/D/1520/2006 | Zambia | 2010

Public-reference AI draft | source quotes and PDF pages verified; interpretation needs review

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Forum and procedural stage

The communication was filed before the UN Human Rights Committee under the Optional Protocol (article 5, paragraph 4) and the Committee issued its Views on 10 March 2010.

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Material facts

Mwamba, a police officer, was arrested for murder and robbery, subjected to torture and inhumane detention, tried on 1 September 1999, convicted of murder and attempted murder, sentenced to death, and denied a timely appeal.

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Issue and actual outcome

The Committee examined violations of articles 6, 7, 10(1), 14(2), 14(3)(c), 14(5) and found the State party in breach of each, confirming the death sentence as unlawful and the trial as unfair.

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Deciding body's reasoning

The Committee linked the mandatory death penalty to article 6 (1) and article 7, held that pre‑trial torture breached article 7, that media prejudice violated article 14 (2), and that the lack of a prompt appeal breached article 14 (3)(c) and 5, citing its general comments on presumption of innocence and right to review.

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General comparison factors and limits

The Committee applied its established jurisprudence on fair trial standards, the prohibition of inhuman treatment, and the requirement that death‑penalty statutes be non‑mandatory; it noted that similar violations have been found in communications from the Philippines and Algeria.

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